



File No.: EXP202206805

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 23, 2022. The complaint is directed against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the respondent or Vodafone). The reasons on which the complaint is based are as follows:

The claimant states that on February 27, 2022, a third party, without their consent, requested a duplicate of their SIM card from Vodafone through customer service.

Subsequently, upon realizing that they had lost their line, they went to a Vodafone point of sale where they were informed that a third person had requested a new SIM card.

Relevant documentation provided by the claimant:

- Copy of the contract for the extension of telephone services signed in the name of the claimant, which lists the contact phone number ***TELEFONO.1. The contract includes the bank account ***CUENTA.1.
- Copy of the complaint filed with the Police and its respective extensions (dated February 28, 2022, and March 1 and 24, 2022) along with the movements of the bank accounts. The complaint states that they have been defrauded of XXXX € and provides the bank account of which they are the holder (***CUENTA.2).
- Invoice related to the duplicate (dated March 15, 2022). The claimant states that the concept "Justification for management costs of replacement SIM card charged" has been billed twice (on February 27 and 28).
- Copy of the complaint letters, dated May 3, 2022, addressed to customer service and the data protection officer.
- Proof of the submission of the complaint directed to customer service and a copy of the email response received on May 14, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On August 8, 2022, this Agency received a response indicating: <>.

THIRD: In accordance with Article 65 of the LOPDGDD, when a complaint is submitted to the Spanish Agency for Data Protection (hereinafter, AEPD), it must evaluate its admissibility for processing, notifying the claimant of the decision on admission or inadmissibility within three months from the date the complaint was received by this Agency.

If, after this period, such notification does not occur, it will be understood that the processing of the complaint continues in accordance with the provisions of Title VIII of the Law.

This provision also applies to the procedures that the AEPD must process in exercising the powers conferred on it by other laws. In this case, considering the above and that the complaint was submitted to this Agency on May 23, 2022, it is communicated

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that your claim was admitted for processing on August 23 of the same year, having passed three months since it was received by the AEPD.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Result of the investigative actions:

- The SIM card change was carried out through customer service on February 27, 2022, and is recorded in Vodafone's screens "at the customer's request."
- The SIM change was made via a call to the call center from a number in Norway (+474).
- The associated screens contain a note regarding NO CALL LIST WITH HIDDEN NUMBER. Activate SIM ***PHONE.1 on date 27/02/2022.
- The duplicate SIM card for the mobile line ***PHONE.1 was reported as fraud on February 28, 2022, by Vodafone's fraud department, proceeding to block the fraudulent SIM card and subsequently issuing a new SIM card.

A fraud victim check was activated, including in the Customer Service screens "Do not provide information when making changes, activating products, orders, etc., if the customer calls from numbers other than those contracted with Vodafone, call concealment, and international origin. Security policy must always be consulted and followed."

- Vodafone does not have the telephone recording as the call was not recorded.
- The identity of the applicant is verified following the guidelines described in the Security Policy for Individual Contracts.

Vodafone states that, since March 14, 2012, it has acted in accordance with the Security Policy for Individual Contracts, which has been progressively updated, and, in the case at hand, the modification was implemented on January 4, 2022.

In the Policy provided by Vodafone, in response to the transfer of the complaint, there is no express reference to the steps and/or actions to be followed in the case of a telephone request for a change and/or sending of a SIM.

However, it states that it will be verified prior to managing the SIM change that there has been no change of address in the last month and that no previous SIM card shipments have been requested. Additionally, it states that if the applicant does not call from the same number for which the change is being managed, the phone number associated with the SIM ("MSISDN") will be requested along with the access code for Customer Service or ID.

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FIFTH: According to the report obtained from the AXESOR tool, the entity VODAFONE ESPAÑA, S.A.U. is a large company established in 1994, with a turnover of 2,928,817,000 euros in 2022.

LEGAL GROUNDS

I

Competence

According to the powers granted to each control authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

Well, the respondent is accused of committing an infringement for violating Article 6 of the GDPR, "Lawfulness of processing," which states in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child. The provisions of point f) of the first paragraph shall not apply...

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application to the processing carried out by public authorities in the exercise of their functions."

In the present case, it is established that a third party on February 27, 2022, requested a duplicate of the claimant's SIM card through a phone call to Vodafone's customer service center, a duplicate that was provided to them, allowing said third party access to the claimant's banking data and carrying out various unauthorized transactions, using the authentication SMS received, thus confirming the same. For the data processing carried out by the respondent to be based on any of the legitimizing circumstances of processing, it would be necessary for them, in their capacity as data controller, to demonstrate that the data subject actually provided the data.

However, the respondent did not provide with their response to the prior information request before the admission of this claim any document or evidentiary element that proves the legal basis for the processing carried out.

Thus, in the response to the AEPD's information request dated August 8, 2022, the respondent stated, "It has been verified that the duplicate SIM card for the mobile line ***TELEFONO.1 not recognized by the claimant was declared fraudulent on February 28, 2022, by Vodafone's fraud department. As a consequence of the above, the fraudulent SIM card was blocked, a new SIM card was subsequently issued, and the claimant was reimbursed the amount of YY,Y€ for the management costs of the SIM card replacement included in the claimant's bill. Additionally, the fraud victim check was activated to prevent similar incidents from occurring in the future."

In line with the above, Vodafone acknowledges in its letter dated October 28, 2022, that the SIM duplicate was fraudulent. Although it provides the security policy, it does not clarify how it was handled in this case, nor does it have documentation or recordings. Furthermore, the call to request the duplicate was made from Norway and using a hidden number, making it impossible to verify who requested the SIM.

In summary, in the analyzed case, the diligence employed by the respondent to identify the person who requested the duplicate SIM card is called into question.

In any case, the procedure implemented by the respondent was not followed, as, had it been done, the

request should have been denied.

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In light of the above, Vodafone fails to demonstrate that this procedure was followed and consequently there was unlawful processing of the claimant's personal data, thereby violating Article 6 of the GDPR. In this regard, Recital 40 of the GDPR states:

“(40) For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis established in accordance with law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

III

Classification and qualification of the infringement

The infringement is classified in Article 83.5 of the GDPR, which considers as such:

“5. The infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

The LOPDGD, for the purposes of the prescription of the infringement, qualifies in its Article 72.1 as a very serious infringement, with a prescription period of three years in this case, “b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

IV

Proposal for sanction

The determination of the sanction to be imposed in this case requires observing the provisions of Articles 83.1 and 2 of the GDPR, which respectively state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in the

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Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following will be duly taken into account:

- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

Within this section, the LOPDGDD provides in its Article 76, titled “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.

3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed on the entity claimed as responsible for an infringement classified in Article 83.5.a) of the GDPR and 72.1 b) of the LOPDGDD, an initial assessment considers the following factors to be concurrent in the present case: As aggravating factors:

- The circumstance of Article 83.2.e) GDPR: “Any previous infringement committed by the data controller or processor.”

Recital 148 of the GDPR states, “In order to reinforce the application of the rules of this Regulation [...]” and indicates in this regard that “Special attention must nevertheless be paid to the nature, severity, and duration of the infringement, to its intentional character [...] or to any relevant infringement [...]”. Thus, in accordance with paragraph e) of Article 83.2. GDPR, in determining the amount of the administrative fine, all previous infringements of the data controller or processor must be assessed in order to gauge the unlawfulness of the analyzed conduct or the culpability of the infringing party. Furthermore, a correct interpretation of the provision of Article 83.2.e) GDPR cannot overlook the purpose pursued by the norm: to decide the amount of the administrative fine in the individual case presented, always ensuring that the sanction is proportional, effective, and dissuasive.

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The allegedly infringing conduct consisted of the processing of personal data without legitimization -

fraudulent SIM duplication - failing to act diligently in fulfilling the obligation to ensure that the personal data being processed complies with the principle of lawfulness.

Therefore, the omission of the necessary diligence aimed at identifying the individual who provided personal data as their own, of which they were not the owner, allowed for identity fraud and determined that the processing of the claimant's personal data carried out by the defendant lacked a legal basis in accordance with Article 5.1.a) in relation to Article 6.1. of the GDPR.

There are numerous sanctioning procedures processed by the AEPD in which the defendant did not act with the required diligence, as they did not apply the necessary and appropriate measures to verify the identity of the contractor or the third party who provided personal data as their own, of which they were not the owner. The procedures and the sanctions imposed therein are intended to calibrate the penalty that should be imposed for the infringement of Article 6.1. of the GDPR attributed to them in this opening agreement.

For this reason, the history of infringements by the defendant, in which there was a significant omission of the necessary diligence to verify the identity of the individual who provided the personal data of a third party as their own, affects the culpability and unlawfulness of the conduct being assessed here.

As an example, the resolutions issued by the AEPD in the following sanctioning procedures processed against the defendant are cited:

i. EXP 202204287 Resolution issued on October 24, 2022, in which a fine of 70,000 euros was imposed. The facts concerned a fraudulent SIM card duplication without legitimization. Vodafone availed itself of one of the two reductions provided.

ii. EXP202103028. Resolution issued on November 29, 2022, in which a fine of 70,000 euros was imposed. The facts concerned a fraudulent SIM card duplication without legitimization. Vodafone availed itself of one of the two reductions provided.

iii. EXP202203914 Resolution issued on October 24, 2022, in which a fine of 70,000 euros was imposed. The facts concerned a fraudulent SIM card duplication without legitimization. Vodafone availed itself of one of the two reductions provided.

- The evident link between the business activity of the defendant and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD).

The Judgment of the National Court of 17/10/2007 (rec. 63/2006), regarding entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and not...

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There is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is essential to insist on rigor and exquisite care to comply with the legal provisions in this regard."

As mitigating factors:

The respondent has effectively resolved the incident subject to the complaint (art. 83.2 c).

It is appropriate to adjust the sanction to be imposed on the respondent and set it at the amount of €100,000 for the alleged infringement of Article 6.1) classified under Article 83.5.a) of the aforementioned GDPR.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection.

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against VODAFONE ESPAÑA, S.A.U. with NIF A80907397, for the alleged infringement of Article 6.1) classified under Article 83.5.a) of the aforementioned GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection.

FOURTH: THAT for the purposes provided in art. 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be for the infringement of Article 6.1 of the GDPR, classified under Article 83.5 a) of the GDPR, and the corresponding sanction would be a fine in the amount of €100,000 (one hundred thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to VODAFONE ESPAÑA, S.A.U. with NIF A80907397, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; which will entail a reduction of 20% on the sanction to be imposed.

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In the present procedure, equivalent in this case to twenty thousand euros (€20,000).

With the application of this reduction, the amount of the sanction would be established at eighty thousand euros (€80,000), concluding the procedure with the imposition of this sanction.

Likewise, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, in accordance with the provisions of Article 85.2 of the LPACAP, which will imply a reduction of 20% of its amount, equivalent in this case to twenty thousand euros (€20,000), for the alleged infringement. With the application of this reduction, the amount of the sanction would be established at eighty thousand euros (€80,000), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be established at sixty thousand euros (€60,000).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, €80,000 or €60,000, you must make it effective by depositing it into account no. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in

accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 20, 2023, the respondent has proceeded to pay the sanction in the amount of €80,000 making use of one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been accredited.

THIRD: The payment made entails the renunciation of any action or administrative appeal against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, the voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202206805, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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